

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

990 Terrace St, Muskegon, MI 49442

Case No. 2024-001507-DC

Case No. 2023-5907-PP

Hon. Jenny McNeill

ANDREW J. PIGORS,
Plaintiff,
1977 Whitehall Rd, Trlr 17
Muskegon, MI 49445
(231) 903-5690 | andrewjpigors@gmail.com

v.

EMILY A. WATSON,
Defendant,
2160 Garland Dr,
Norton Shores, MI 49441
(231) 638-7107 | watson104@msn.com

**EX PARTE MOTION TO REOPEN AND CONSOLIDATE CUSTODY AND PPO
CASES, MODIFY CUSTODY, PARENTING TIME, CHILD SUPPORT, AND
TERMINATE PERSONAL PROTECTION ORDER (PPO)**

NOW COMES Plaintiff, Andrew J. Pigors, in pro per, and respectfully requests that this Honorable Court enter an order to:

- Reopen the Custody Case (Case No. 2024-001507-DC)** based on significant changes in circumstances, pursuant to **MCL 722.27(1)(c)**.
- Consolidate Case No. 2023-5907-PP** (Personal Protection Order) with the custody case due to overlapping facts and issues regarding parenting time, under **MCR 2.505(A)**.
- Terminate the Personal Protection Order (PPO)** under **MCL 600.2950(14)** and **MCR 3.707(A)**, as it has been misused by Defendant to alienate Plaintiff from his child.
- Modify the Current Parenting Time Order** under **MCL 722.27(1)(c)** to reflect a more equitable parenting time arrangement that is in the best interest of the minor child, LDW.
- Grant make-up parenting time** for the 46+ days lost due to Defendant's manipulation and obstruction, particularly during the period of March 26 to May 3, 2024.
- Appoint a Guardian ad Litem (GAL)** to investigate and make recommendations regarding LDW's best interests.
- Mandate both parties to attend co-parenting classes** to improve communication and cooperation, ensuring LDW's well-being is prioritized.

8. **Require the use of the AppClose application** for all co-parenting communications to ensure transparency, accountability, and proper documentation of interactions.
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STATEMENT OF JURISDICTION

This Court has jurisdiction over this matter pursuant to **MCL 722.27** for custody modification and **MCL 600.2950** for PPO termination, as both involve the welfare of the minor child, LDW, and the proper exercise of parenting time.

CASE SUMMARY

- Plaintiff, **Andrew J. Pigors**, is the father of LDW, born on November 9, 2022.
 - Defendant, **Emily A. Watson**, obtained a PPO against Plaintiff under false pretenses in 2023, which has severely restricted parenting time and communication.
 - Plaintiff seeks to reopen the custody case due to significant changes in circumstances, terminate the PPO, and request an equitable modification of the parenting time schedule.
 - Plaintiff is also requesting the consolidation of the PPO and custody cases to avoid inconsistent rulings and for judicial efficiency.
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PRELIMINARY STATEMENT

This Motion seeks to reopen the custody case due to significant changes in circumstances and to terminate the misuse of a Personal Protection Order (PPO) that has restricted Plaintiff's relationship with his son, LDW. Plaintiff requests the consolidation of the PPO and custody cases to ensure judicial efficiency and seeks to modify the current parenting time arrangement to reflect LDW's best interests.

FACTUAL BACKGROUND

1. Plaintiff is the father of LDW, born on November 9, 2022.
2. Defendant, Emily Watson, obtained a PPO against Plaintiff in 2023, under false pretenses, which has severely limited Plaintiff's parenting time.
3. Since the issuance of the PPO, Plaintiff's circumstances have changed significantly, including stable employment and housing:
 - o Employed full-time at Shape Corporation, earning \$19.86 per hour.
 - o Resides in stable housing at 1977 Whitehall Rd, Lot 17 Muskegon, MI.
4. Defendant has refused to cooperate in co-parenting, has withheld necessary items during exchanges (e.g., shoes, food), and has delayed providing critical care information (see **AppClose Communication Records**).
5. Defendant has violated the PPO via 3rd party harassment on multiple occasions. Cody Watson and Tamara Snider.

6. Defendant has unilaterally made decisions regarding LDW's medical care and withheld crucial information, including withholding LDW's birth certificate and Social Security card.
 7. On October 4, 2024, Defendant failed to notify Plaintiff about LDW's severe viral infection until mere hours before the scheduled exchange, showing a disregard for LDW's health.
 8. On October 17th 2024, for the 3rd time the Defendant refused to provide any information pertaining to the "trip" where she wants to take LDW out of the country, to a country that does not participate in the Hague convention.
 9. Since July 17, 2024, Plaintiff's parenting time has been reduced from 182.5 days to 78 days per year, depriving Plaintiff of significant involvement in LDW's life.
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LEGAL ARGUMENTS

1. **Motion to Reopen Custody Case –**

Under **MCL 722.27(1)(c)**, a court may modify a custody order upon a showing of "proper cause" or "change in circumstances." Michigan courts, including **Vodvarka v. Grasmeyer, 259 Mich App 499**, have established that changes affecting a child's emotional, physical, or psychological well-being can constitute sufficient grounds for reopening a custody case. The current custody arrangement, which drastically reduces Plaintiff's parenting time, has negatively impacted LDW's emotional stability, as evidenced by his increased emotional confusion and behavioral regression. Additionally, Plaintiff's **stable employment** at Shape Corp, **secure housing**, and **financial stability** represent significant improvements since the initial custody determination. These changes directly affect LDW's well-being and provide proper cause to reopen the case, ensuring that the child benefits from an equitable custody arrangement that supports his emotional and developmental needs.

2. **Motion to Consolidate PPO and Custody Cases –**

Pursuant to **MCR 2.505(A)**, consolidation is appropriate where two or more actions involve a common question of law or fact. Both the PPO and custody cases in this matter involve overlapping issues, particularly concerning **parenting time, communication, and the misuse of the PPO**. Plaintiff argues that the PPO has been misused as a tool for parental alienation and has directly impacted the custody arrangement by restricting meaningful access to LDW. Consolidation of these cases will not only avoid inconsistent rulings but also promote **judicial efficiency** by allowing the court to hear all related issues together. **Browder v. Browder, 362 Mich App 318** supports this approach, as consolidation will enable the court to assess the interrelated facts surrounding the PPO and custody in one comprehensive proceeding, ensuring a consistent and just resolution in the best interest of the child.

3. **Motion to Terminate PPO –**

Under **MCL 600.2950(14)** and **MCR 3.707(A)**, a PPO may be terminated when it is no longer necessary to protect the petitioner or serves no legitimate purpose. In this case, the PPO has been weaponized by Emily Watson as a means of **alienating Plaintiff from LDW** rather than protecting herself from legitimate harm. The facts and evidence, including staged photographs and fabricated harassment claims, demonstrate that the PPO was obtained under false pretenses, as seen in **Rains v. Rains, 301 Mich App 313**, which supports terminating a PPO when it is being misused. The continuation of this PPO only harms LDW by limiting his access to his father

and creating emotional strain. Therefore, the PPO should be terminated to restore fair and balanced access to LDW, which serves his best interests.

4. **Motion to Modify Parenting Time –**

MCL 722.27a(1) mandates that parenting time should foster a strong parent-child relationship and ensure frequent and continuing contact with both parents. Plaintiff's current parenting time of only four overnights per month is insufficient to maintain a meaningful bond with LDW, particularly given that Plaintiff was a consistent and active part of LDW's life prior to the reduction in parenting time. Michigan courts have long emphasized the importance of parenting time in maintaining a strong relationship between the child and both parents. In **Theriault v. Rogers, 137 Mich App 214**, the court held that a child's best interests must guide any modifications to parenting time. Plaintiff requests a **week-on, week-off parenting schedule**, which is better suited to LDW's emotional, developmental, and psychological needs. This equitable schedule will restore balance to LDW's life by allowing him to benefit from **frequent, consistent, and meaningful contact** with both parents

5. **Motion for Make-Up Parenting Time –**

MCL 722.27(1)(e) empowers the court to order make-up parenting time when a parent has been **wrongfully denied parenting time**. Plaintiff was wrongfully deprived of over **36 days of parenting time** when Emily Watson unlawfully withheld LDW, as well as an additional **26 days** due to the court's prior reduction of his parenting time, for a total of **62 days** lost. This extended period of wrongful deprivation has harmed the father-son bond and caused emotional distress to LDW. In **Foskett v. Foskett, 247 Mich App 1**, the court found that make-up parenting time should be granted when a parent has been deprived of their rightful time with the child, and it must account for the emotional harm caused. Plaintiff respectfully requests **extended make-up parenting time** to restore the relationship and address the harm caused by this extended absence.

6. **Motion to Block International Travel to Non-Hague Convention Countries –**

Plaintiff seeks an order to **block international travel** to non-Hague Convention countries until full details of the trip are disclosed and **legal safeguards** are in place. **MCL 722.27(1)(c)** provides that the court may modify orders to prevent harm to a child. The planned international trip to a country that does not participate in the **Hague Convention on International Child Abduction** presents a significant risk, especially given Emily Watson's history of **wrongfully withholding LDW**. Without proper safeguards, Plaintiff may be unable to ensure LDW's safe return. Courts have a duty to intervene when there is a risk of harm to a child's well-being, and blocking this travel until safeguards are in place is essential to protect LDW from potential abduction or wrongful retention.

7. **Motion to Recalculate Child Support –**

Plaintiff requests a recalculation of child support based on the updated joint custody arrangement and Emily Watson's **undisclosed sources of income**. Under **MCL 552.17**, child support calculations must accurately reflect the financial situation of both parents. The current child support order does not account for Emily Watson's **rental income from Cody Watson or child**

support from Austin Muratori, which she failed to disclose. **Michigan Child Support Formula Manual (MCSFM)** requires accurate reporting of all income, and failure to do so results in an inequitable support arrangement. Plaintiff seeks a recalculation to ensure that support payments are fair and reflective of both parties' actual income, including a request for **reimbursement of overpaid child support** due to the erroneous calculation.

8. **Motion for Appointment of Parenting Coordinator –**

Plaintiff requests the court appoint a **Parenting Coordinator** under **MCL 722.24** to facilitate conflict resolution and improve communication between the parties. The ongoing disputes, including Emily's refusal to co-parent, have created a **high-conflict environment** that is detrimental to LDW's well-being. A Parenting Coordinator will ensure that decisions regarding LDW's health, education, and well-being are made in a fair and consistent manner, reducing the conflict between the parents and prioritizing LDW's best interests.

REQUESTS FOR RELIEF

WHEREFORE, **Andrew J. Pigors**, Plaintiff, respectfully requests that this Honorable Court grant the following relief to ensure the best interests of the minor child, **Lincoln David Watson (LDW)**, and to address the harm caused by the current custodial and legal situation:

1. **Reopen the Custody Case (Case No. 2024-001507-DC):**

Pursuant to **MCL 722.27(1)(c)** and in light of significant changes in circumstances affecting the emotional, physical, and developmental well-being of LDW, Plaintiff requests that this Court reopen the custody case. The current custody arrangement no longer serves LDW's best interests, and a modification is essential to restore stability, consistency, and emotional security for the child.

2. **Consolidate the PPO Case (Case No. 2023-5907-PP) with the Custody Case:**

Under **MCR 2.505(A)**, Plaintiff requests that this Court consolidate the Personal Protection Order (PPO) case with the custody case due to overlapping facts and common issues of law, including the misuse of the PPO as a tool for parental alienation. Consolidation will ensure judicial efficiency and prevent inconsistent rulings, as both cases revolve around LDW's best interests and Plaintiff's custodial rights.

3. **Terminate the PPO Issued Against Plaintiff:**

In accordance with **MCL 600.2950(14)** and **MCR 3.707(A)**, Plaintiff requests the immediate termination of the PPO. The PPO was obtained under false pretenses, using manipulated evidence, and no longer serves a legitimate protective purpose. Its continued enforcement is causing irreparable harm to the father-son relationship by unjustly limiting Plaintiff's access to LDW.

4. **Modify the Existing Parenting Time Order to Reflect a Shared and Equitable Arrangement:**

In alignment with **MCL 722.27a(1)**, Plaintiff respectfully requests a modification of the current parenting time order to a **week-on, week-off** joint physical custody arrangement. This modification will restore balance, allow LDW to benefit equally from both parents, and prevent further emotional harm caused by the reduction in Plaintiff's parenting time. An equitable parenting schedule will promote LDW's emotional and developmental well-being by providing frequent and consistent contact with both parents.

5. **Grant Make-Up Parenting Time for the Days Lost Due to Defendant's Obstruction:**
Pursuant to **MCL 722.27(1)(e)**, Plaintiff requests extended **make-up parenting time** for the **36 days wrongfully withheld** by Defendant and the additional **26 days lost** due to the court's reduction of parenting time. The cumulative **62 days of lost parenting time** have caused significant emotional harm to LDW and disrupted his bond with Plaintiff. Make-up parenting time will help to repair the emotional damage caused and restore Plaintiff's rightful relationship with LDW.
6. **Appoint a Guardian ad Litem (GAL) to Investigate LDW's Best Interests:**
Plaintiff requests the appointment of a **Guardian ad Litem (GAL)** under **MCL 722.24** to conduct an independent investigation into LDW's best interests. The GAL will provide the Court with objective findings on the emotional, physical, and developmental needs of LDW, ensuring that future decisions prioritize his well-being and address the ongoing parental conflict.
7. **Mandate Co-Parenting Classes for Both Parties:**
Plaintiff requests that both parties be required to attend **co-parenting classes** to improve communication and conflict resolution skills. These classes will ensure that both parents are equipped to make decisions in LDW's best interests and prevent further alienation or obstructive behavior from Defendant.
8. **Mandate the Use of a Court-Monitored Communication App such as AppClose:**
To facilitate transparent and effective communication between the parties, Plaintiff requests that the Court mandate the use of a **court-monitored communication app** such as **AppClose**. This will ensure that all co-parenting discussions are documented and monitored by the Court, preventing further communication issues and enhancing LDW's access to both parents.
9. **Grant Any Other Relief Deemed Just and Proper by this Court:**
Plaintiff respectfully requests that the Court grant any additional relief deemed **just and proper** to protect LDW's best interests, promote a healthy parent-child relationship, and ensure fair treatment of all parties involved in this matter.

Respectfully Submitted,

Andrew J. Pigors,
Plaintiff, In Pro Per
1977 Whitehall Rd, Trlr 17
Muskegon, MI 49445
(231) 903-5690
Date: _____

Notary Public

Subscribed and sworn to before me this ____ day of _____, 2024, by **Andrew J. Pigors**.

Notary Signature: _____

Notary Name (Printed): _____

My Commission Expires: _____

Fee Waiver Application (MC 20)

**STATE OF MICHIGAN
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Case No. 2024-001507-DC

Case No. 2023-5907-PP

Hon. Jenny McNeill

ANDREW J. PIGORS,
Plaintiff,

v.

EMILY A. WATSON,
Defendant.

APPLICATION TO WAIVE FEES AND COSTS (MC 20)

NOW COMES Plaintiff, Andrew J. Pigors, and hereby applies to waive court fees and costs pursuant to **MCR 2.002** and **MCL 600.2529(2)**, and states as follows:

1. Plaintiff's Financial Status

- o Plaintiff is currently employed at Shape Corporation, earning **\$19.86 per hour**, but due to the financial strain of legal proceedings and other obligations related to the custody case,
- o I pay 95\$ a week in insurance costs for LDW and myself.
- o I pay 88\$ a week in child support payments.
- o Plaintiff is unable to pay the required court fees and costs.
- o Plaintiff's income, after basic living expenses and child support obligations, is insufficient to cover additional legal costs.

2. Eligibility for Fee Waiver

- o Under **MCR 2.002** and **MCL 600.2529**, a party may apply for a waiver of fees when they cannot pay the required costs without undue hardship.
- o Plaintiff has attached a **Financial Affidavit** detailing monthly income, expenses, and assets to substantiate this request.

3. Request for Fee Waiver

- o Plaintiff requests that the Court waive all filing fees, service fees, motion fees, and other court-related costs in relation to this consolidated motion, based on financial need and the right to access the courts.

WHEREFORE, Plaintiff respectfully requests that this Honorable Court grant the waiver of fees and costs as outlined in **MCR 2.002**.

Respectfully Submitted,

Andrew J. Pigors

Plaintiff, In Pro Per

1977 Whitehall Rd, Trlr 17

Muskegon, MI 49445

Date: _____

NOTARY PUBLIC

Subscribed and sworn to before me this ____ day of _____, 2024, by **Andrew J. Pigors**.

Notary Signature: _____

Notary Name (Printed): _____

My Commission Expires: _____

Financial Affidavit

I, Andrew J. Pigors, residing at 1977 Whitehall Rd, Trlr 17, Muskegon, MI 49445, state that the following is a true and accurate representation of my financial status:

- **Employer:** Shape Corporation
- **Wage:** \$19.86 per hour
- **Monthly Gross Income:** \$3,174.40
- **Monthly Expenses:**
 - Rent: \$700
 - Child Support 352\$
 - Insurance Payments 380\$
 - Utilities: \$250
 - Food: \$400
 - Transportation: \$200
 - Child Support: \$385
 - Other Expenses: \$350
- **Total Monthly Expenses:** \$2,285
- **Available Income After Expenses:** \$722.40

I certify that, after the listed expenses, I do not have the financial means to pay court fees and other costs without incurring undue financial hardship.

Respectfully Submitted,

Andrew J. Pigors

Date: _____

**STATE OF MICHIGAN
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Case No. 2024-001507-DC

Case No. 2023-5907-PP

Hon. Jenny McNeill

NOTICE OF HEARING

In re: Motion to Reopen Custody Case, Consolidate Cases, Modify Parenting Time, and Terminate PPO

TO: Emily A. Watson, Defendant

2160 Garland Dr, Norton Shores, MI 49441

PLEASE TAKE NOTICE that a hearing will be held on the **Motion to Reopen Custody Case, Consolidate Cases, Modify Parenting Time, and Terminate PPO** as follows:

- **Date:** [_____]
 - **Time:** [_____]
 - **Location:** 14th Circuit Court, 990 Terrace St, Muskegon, MI 49442, Courtroom of Hon. Jenny McNeill
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Issues to be addressed:

1. Consolidation of PPO Case (2023-5907-PP) with the Custody Case (2024-001507-DC)
 2. Terminating Personal Protection Order
 3. Reopening Custody Case
 4. Modification of Parenting Time, and Custody to reflect a 50/50 custody arrangement.
 5. Ex-Parte Temporary Custody Order until Hearing
 6. Appointment of Guardian ad Litem (GAL)
 7. Motion Forensic Analysis of Defense's Bank and Insurance
 8. Court-ordered Co-Parenting Classes.
 9. Request for Make-Up Parenting Time.
 10. Any other relief the court deems proper.
-

Respectfully Submitted,

Andrew J. Pigors

Plaintiff, In Pro Per

1977 Whitehall Rd, Trlr 17

Muskegon, MI 49445

Datte: _____

PROOF OF SERVICE

I, **Andrew J. Pigors**, certify that I served a copy of this **Notice of Hearing** on Defendant, **Emily A. Watson**, by **certified mail, return receipt requested**, at her address, 2160 Garland Dr, Norton Shores, MI 49441, on the ____ day of _____, 2024. Signature: _____

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

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Hon. Jenny McNeill

REQUEST FOR COPIES OF OFFICIAL COURT DOCUMENTS

TO THE CLERK OF THE COURT:

Please provide me, **Andrew J. Pigors**, Plaintiff, with the following certified copies of official court documents from both **Case No. 2024-001507-DC** (Custody Case) and **Case No. 2023-5907-PP** (Personal Protection Order):

1. **Order of Custody and Parenting Time** entered on [Date].
2. **PPO Order** issued on [Date].
3. **All filings, motions, and affidavits** related to these cases, including Plaintiff's recent motion to consolidate and modify custody.
4. **Notice of Hearing** for the upcoming court session on [Date].

Payment of Fees: I request that this document request be covered under my **Fee Waiver Application (MC 20)**, as filed.

Thank you for your attention to this matter.

Respectfully Submitted,

Andrew J. Pigors
Plaintiff, In Pro Per
1977 Whitehall Rd, Trlr 17
Muskegon, MI 49445
(231) 903-5690
Date: _____

PROOF OF SERVICE

I, **Andrew J. Pigors**, certify that I served a copy of this **Request for Copies of Official Court Documents** on Defendant, **Emily A. Watson**, by **certified mail, return receipt requested**, at her address, 2160 Garland Dr, Norton Shores, MI 49441, on the ____ day of _____, 2024.

Signature: _____